



Procedure No: EXP202306600 (PS/0348/2023)

RESOLUTION OF SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On 08/02/23, Mr. A.A.A. (hereinafter, the complainant) filed a complaint against Mr. B.B.B. with NIF: ***NIF.1, responsible for the processing of personal data of the International School of Gesto (hereinafter, the respondent), for the alleged violation of data protection regulations: Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/16, regarding the Protection of Natural Persons in relation to the Processing of Personal Data and the Free Movement of such Data (GDPR), Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), and Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

The complainant indicates that, after having been a student at the International School of Gesto, he has repeatedly received unwanted promotional information, despite having requested the cancellation of his personal data on several occasions. However, advertising emails have continued to be sent despite having received confirmation that his address had been removed from the list.

The cancellation requests were made on 22/10/20, 22/02/21, 13/10/21, and finally on 28/05/22, for which it was confirmed that his request had been addressed. Nevertheless, he has again received unwanted advertising emails dated 21/03/23 and 27/03/23.

Along with the complaint, the following documentation is attached:

- Copy of the letter sent to the "International School of Gesto," dated 13/10/21, requesting the deletion of the complainant's personal data.
- Copy of the email sent by the complainant on 28/05/22, to the email address, ***EMAIL.1 indicating in it, among other things, the following:
 - o "There have already been three previous occasions (22/10/20 and 22/02/21 and 13/10/21) in which I have requested that you delete my data from your database as I do not wish to continue receiving promotional information from you. I am forwarding the letter I sent you last year as a courtesy to urge you to do so one last time. I kindly request that, in accordance with data protection legislation, you comply with my request to delete all my data in your possession, so as not to receive any more information from you, and confirm this to me (...)."
- Copy of the email received on 30/05/22 from the International School of Gesto (***EMAIL.1) indicating that he would no longer receive any more advertising emails.
- Copy of the emails received on 21/03/23 and 27/03/23 from the email address, ***EMAIL.1 containing advertising or promotional messages.

SECOND: On 19/05/23, in accordance with the provisions of Article 65.4 of the LOPDGDD, this Agency forwarded the complaint to the respondent for analysis and to report back within one month on the matters raised in the complaint.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), was sent by postal mail to the respondent at the postal address: ***DIRECCIÓN.1, (the same postal address printed in the "Privacy Policy" of the respondent's website: ***URL.1), and was returned to sender due to "Incorrect Address" on 13/06/23.

THIRD: On 07/07/23, the Director of the Spanish Agency for Data Protection issued an agreement to admit the processing of the complaint filed, in accordance with Article 65 of the LOPDGDD.

FOURTH: On 28/08/23, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against Mr. B.B.B. with NIF: ***NIF.1, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), for the alleged infringement of Article 21.1 of the LSSI, classified as "minor" in Article 38.4.d) of that regulation, regarding the sending of an advertising email after the

complainant opposed it.

In the opening agreement, it was determined that the sanction that could correspond, given the existing evidence at that time and without prejudice to what might result from the instruction, would amount to a total of 2,000 euros (two thousand euros).

It was also indicated to the respondent that if, within the stipulated period, no allegations were made against this initiation agreement, it could be considered a proposal for resolution, as established in Article 64.2.f) of the LPACAP.

The notification of the initiation agreement, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), was sent to the address: ***DIRECCIÓN.1, and was collected on 11/10/23, as recorded in the acknowledgment of receipt in the file.

FIFTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, and after the period granted for the submission of allegations has elapsed, it has been confirmed that no allegations have been received from the respondent in this Agency.

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Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the agreement to open the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement about the responsibility attributed, it may be considered a proposal for resolution. In the present case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the LSSI attributed to the respondent, and the sanction that could be imposed. Therefore, considering that the respondent has not made allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In light of all the actions taken, the following facts are considered proven by the Spanish Agency for Data Protection in this procedure,

PROVEN FACTS

Single: The complainant states in their complaint that, after having been a student at the International Gesto School, they have repeatedly received unwanted promotional information, to which they have requested the cancellation of their personal data on several occasions. However, advertising messages have continued to be sent despite having received confirmation that their address had been removed from the list.

Along with the complaint, the following documentation is attached:

- Copy of the letter sent to the "Escuela Internacional del Gesto," dated 13/10/21, requesting the deletion of the complainant's personal data.
- Copy of the email sent by the complainant on 28/05/22, to the email address ***EMAIL.1, where they report that after having requested several times that they did not want to receive any more advertising emails.
- Copy of the email received on 30/05/22 from the Escuela Internacional del Gesto (***EMAIL.1) confirming that they will no longer receive any more advertising emails.
- Copy of the emails received on 21/03/23 and 27/03/23 from the email address ***EMAIL.1 containing advertising or promotional messages.

LEGAL GROUNDS

I.-

Competence

The Director of the Spanish Agency for Data Protection is competent to initiate and resolve this Sanctioning Procedure, in accordance with the provisions of Article 43.1, second paragraph, of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

The Fourth Additional Provision "Procedure in relation to the powers attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the powers attributed to it by other laws."

II.-

Qualification of the infringement committed

by

the sending of emails with

advertising messages having previously opposed it:

In this case, the complainant continues to receive advertising emails from the Escuela Internacional del Gesto, whose responsible party is the respondent, despite having requested several times that they no longer send advertising emails and having obtained confirmation from the respondent that they would not receive any more emails of that type.

In this regard, Article 21.1 of the LSSI provides as follows:

"1. The sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients is prohibited."

Therefore, the facts presented constitute a violation of Article 21.1 of the LSSI, by the respondent for sending advertising emails after the complainant opposed receiving electronic communications of this type.

III.-

Graduation of the Sanction

The aforementioned infringement is classified as "minor" in Article 38.4.d) of said regulation, which qualifies as such, "The sending of commercial communications by email or other equivalent electronic communication means when the requirements established in Article 21 are not met and does not constitute a serious infringement."

According to the provisions of Article 39.1.c) of the LSSI, minor infringements may be sanctioned with a fine of up to €30,000.

Based on the evidence obtained, it is considered appropriate to graduate the sanction to be imposed according to the following aggravating criteria, established in Article 40 of the LSSI:

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The existence of intent (section a), as the complainant had requested on four occasions that no further commercial communications be sent to him via email, and the respondent had acknowledged receipt of his request confirming that it had been addressed.

In accordance with these criteria, it is deemed appropriate to impose a fine of 2,000 euros (two thousand euros) for the infringement of Article 21.1 of the LSSI, classified as "minor" in Article 38.4.d) of the aforementioned regulation, regarding the sending of advertising emails after the complainant had opposed receiving such electronic communications.

Therefore, in accordance with the applicable legislation and having assessed the established facts, the Director of the Spanish Agency for Data Protection,

RESOLVES:

FIRST: TO IMPOSE on Mr. B.B.B. with NIF: ***NIF.1, for the infringement of Article 21.1 of the LSSI, classified as "minor" in Article 38.4.d) of the aforementioned regulation, a fine of 2,000 euros (two thousand euros).

SECOND: TO NOTIFY this resolution to Mr. B.B.B.

THIRD: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that they must pay the imposed fine once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of the LPACAP, within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A.

Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronicaweb/>], or through one of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

Mar España Martí

Director of the Spanish Agency for Data Protection

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